

GORSUCH, J., dissenting

son the relationship between Wales, Scotland, and England.³⁹ And prosecutions in one of these places pretty plainly barred subsequent prosecutions for the same offense in the others. So, for example, treatises explained that “an Acquittal of Murder at a Grand Sessions in *Wales*, may be pleaded to an Indictment for the same Murder in *England*. For the Rule is, That a Man’s Life shall not be brought into Danger for the same Offence more than once.”⁴⁰ Indeed, when an English county indicted a defendant “for a murder committed . . . in Wales,” it was barred from proceeding when the court learned that the defendant had already been tried and acquitted “of the same offence” in Wales.⁴¹

Against this uniform body of common law weighs *Gage v. Bulkeley*—a civil, not criminal, case from 1744 that suggested *Hutchinson* had held only that the English courts lacked jurisdiction to try a defendant for an offense committed in Portugal. Because “the murder was committed in *Portugal*,” *Gage* argued, “the Court of King’s Bench could not indict him, and there was no method of trying him but upon a special commission.”⁴² But no one else—not the treatise writers or the other English cases that favorably cited *Hutchinson*—adopted *Gage*’s restrictive reading of that precedent.

In the end, then, it’s hard to see how anyone consulting the common law in 1791 could have avoided this conclusion: While the issue may not have arisen often, the great weight of authority indicated that successive prosecutions by different sovereigns—even sovereigns as foreign to each other as

³⁹ See, e. g., A. Amar, *America’s Constitution: A Biography* 45 (2005); *The Federalist* No. 5, at 50–51; *id.*, No. 17; Jay, *An Address to the People of the State of New York, in Pamphlets on the Constitution of the United States* 84 (P. Ford ed. 1788).

⁴⁰ 2 Hawkins § 10, at 372.

⁴¹ *King v. Thomas*, 1 Lev. 118, 83 Eng. Rep. 326 (K. B. 1664).

⁴² *Gage v. Bulkeley*, Ridg. T. H. 263, 270–271, 27 Eng. Rep. 824, 827 (1744).